PURCHASE AND SALE AGREEMENT

Kingsley Suites | Oklahoma City, OK

Seller	Orchid Bay Ventures
Buyer	Tidewater Core Fund
Property	Kingsley Suites, 7132 Market Court, Oklahoma City, OK 41403
Purchase Price	$51,620,000
Effective Date	August 9, 2021

1. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Kingsley Suites, located at 7132 Market Court, Oklahoma City, OK 41403, consisting of 239 guest rooms, together with all improvements, fixtures and appurtenances. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

2. Purchase Price. The purchase price for the Property shall be $51,620,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

3. Earnest Money Deposit. Within 27 business days after the Effective Date, Buyer shall deposit $1,032,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Due Diligence Period. Buyer shall have 47 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OK.

5. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

6. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

7. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

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8. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

9. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

10. Closing. Closing shall occur on or before September 23, 2021, through escrow with Patriot Land Title. Possession shall be delivered to Buyer at Closing. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OK.

11. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

12. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Kingsley Suites, located at 7132 Market Court, Oklahoma City, OK 41403, consisting of 239 guest rooms, together with all improvements, fixtures and appurtenances. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OK.

13. Purchase Price. The purchase price for the Property shall be $51,620,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OK. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Earnest Money Deposit. Within 23 business days after the Effective Date, Buyer shall deposit $1,032,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Orchid Bay Ventures

By: Julia Hughes Title: Manager Date: 08/09/2021

_____

Marcus Quinn

By: Tyrone Hughes Title: Managing Member Date: 08/09/2021

Exhibit A - Property

Kingsley Suites, 7132 Market Court, Oklahoma City, OK 41403. Parcel containing approximately 12.91 acres, together with all improvements thereon.

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